

NCYTE CORP. et al v. SUN PHARMA CANADA INC. et al

Plaintiff:	INCYTE CORP. and INCYTE HOLDINGS CORP.
Defendant:	SUN PHARMA CANADA INC. and SUN PHARMACEUTICAL INDUSTRIES LTD.
Case Number:	2:2026cv06905
Filed:	June 10, 2026
Court:	U.S. District Court for the District of New Jersey
Presiding Judge:	Stacey D Adams
Referring Judge:	Madeline Cox Arleo
Nature of Suit:	Patent - Abbreviated New Drug Application(ANDA)
Cause of Action:	35 U.S.C. § 271 Patent Infringement
Jury Demanded By:	None

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Date Filed	Document Text
June 11, 2026	Filing 4 NOTICE of Appearance by ALEXANDER LEE CALLO on behalf of INCYTE CORP., INCYTE HOLDINGS CORP. (CALLO, ALEXANDER)
June 11, 2026	Filing 3 NOTICE of Appearance by SARAH ANN SULLIVAN on behalf of INCYTE CORP., INCYTE HOLDINGS CORP. (SULLIVAN, SARAH)
June 11, 2026	Case assigned to Judge Madeline Cox Arleo and Magistrate Judge Stacey D. Adams. (jr)
June 10, 2026	Filing 2 Corporate Disclosure Statement by INCYTE CORP., INCYTE HOLDINGS CORP.. (LIZZA, CHARLES)

Date Filed	Document Text
June 10, 2026	Filing 1 COMPLAINT against SUN PHARMA CANADA INC., SUN PHARMACEUTICAL INDUSTRIES LTD. (Filing and Admin fee \$ 405 receipt number ANJDC-17527043) , Related Case Selected, filed by INCYTE CORP., INCYTE HOLDINGS CORP.. (Attachments: #1 Civil Cover Sheet)(LIZZA, CHARLES)

I. Executive Summary and Procedural Information

Parties & Counsel:	
Plaintiff:	Incyte Corp. and Incyte Holdings Corporation (Delaware)
Defendant:	Sun Pharma Canada Inc. (Canada) and Sun Pharmaceutical Industries Ltd. (India)
Plaintiff's Counsel:	Saul Ewing LLP
Case Identification:	2:26-cv-06905 , D.N.J., 07/16/2026
Venue Allegations:	Venue is alleged to be proper as Defendants conduct business throughout the United States, including New Jersey, and as foreign corporations, they may be sued in any judicial district.
Core Dispute:	Plaintiff alleges that Defendants' filing of an Abbreviated New Drug Application (ANDA) to market a generic version of Plaintiff's Opzelura® (ruxolitinib) cream constitutes an act of patent infringement under the Hatch-Waxman Act.
Technical Context:	The technology concerns topical pharmaceutical formulations of ruxolitinib, a Janus kinase (JAK) inhibitor, used for treating inflammatory skin disorders such as atopic dermatitis and vitiligo.
Key Procedural History:	The lawsuit was initiated in response to Defendants' Paragraph IV certifications asserting that the patents-in-suit are invalid or would not be infringed by their proposed generic product. This action is part of a series of litigations between the parties concerning the same ANDA, with prior suits involving different patents listed in the FDA's Orange Book for Opzelura®. The complaint notes that the original ANDA filer, Taro Pharmaceuticals Inc., was amalgamated into Defendant Sun Pharma Canada Inc.
Case Timeline	

Date	Event
2010-05-21	U.S. Patent 12,564,593 Priority Date
2019-09-05	U.S. Patent 12,589,096 Priority Date
2025-01-27	Taro sends First Paragraph IV Notice Letter to Incyte
2025-03-13	Incyte files first Hatch-Waxman suit against Taro

Date	Event
2025-04-01	Taro and Sun Canada amalgamate
2025-04-22	Taro sends Second Paragraph IV Notice Letter to Incyte
2025-06-04	Incyte files second Hatch-Waxman suit against Taro
2026-03-03	U.S. Patent 12,564,593 Issues
2026-03-31	U.S. Patent 12,589,096 Issues
2026-04-29	Sun Canada sends Third Paragraph IV Notice Letter to Incyte (re: '593 Patent)
2026-06-23	Sun Canada sends Fourth Paragraph IV Notice Letter to Incyte (re: '096 Patent)
2026-07-16	Complaint Filing Date

II. Technology and Patent(s)-in-Suit Analysis

U.S. Patent No. 12,564,593, "Topical Formulation for a JAK Inhibitor," Issued March 3, 2026

The Invention Explained

Problem Addressed: The patent background describes the role of Janus kinase (JAK) signaling in inflammatory diseases, including skin disorders like psoriasis ['593 Patent, col. 1:21-46](#). It identifies a need for "stable, easily applied formulations for JAK inhibitors with good skin permeation characteristics" for topical treatment ['593 Patent, col. 2:47-52](#).

The Patented Solution: The patent discloses a specific oil-in-water emulsion formulation for topically delivering the JAK inhibitor ruxolitinib ['593 Patent, abstract](#). This formulation is described as having superior properties, including appearance, stability, and skin permeation, compared to other formulations like water-in-oil emulsions or anhydrous ointments ['593 Patent, col. 4:42-55](#). Figure 1 provides a detailed flowchart for the manufacturing process of the claimed emulsion ['593 Patent, Fig. 1](#).

Technical Importance: Developing a stable and effective topical formulation for a JAK inhibitor enables localized treatment of skin immune disorders, which could mitigate the systemic side effects associated with oral administration of such compounds.

Key Claims at a Glance

The complaint alleges infringement of one or more claims of the '593 patent without specifying which ones [Compl. ¶39](#). Independent claim 1 is representative of the formulation claims.

Independent Claim 1: A pharmaceutical formulation for topical skin application, comprising:

- An oil-in-water emulsion;
- from 35% to 65% by weight of water;

- from 10% to 40% by weight of a mixture of petrolatum, C16-18 fatty alcohols, mineral oil, a triglyceride, and a silicone oil;
- from 2% to 6% by weight of a mixture of a glyceryl fatty ester and a sorbitan fatty ester;
- from 0.05% to 5% by weight of a polysaccharide;
- from 10% to 35% by weight of a mixture of an alkylene glycol and a polyalkylene glycol; and
- from 0.5%-1.5% of the ruxolitinib phosphoric acid salt by weight on a free base basis.

U.S. Patent No. 12,589,096, "Ruxolitinib formulation for reduction of itch in atopic dermatitis," Issued March 31, 2026

The Invention Explained

- Problem Addressed:** The patent background identifies pruritus (itch) as a "cardinal feature" of atopic dermatitis (AD) that impairs quality of life, and notes that existing therapies do not exert a "direct effect on itch alleviation" '096 Patent, col. 1:45-63
- The Patented Solution:** The invention provides methods for reducing itch and treating AD by administering a topical ruxolitinib cream (0.75% or 1.5%) two times per day '096 Patent, abstract
The patent describes clinical trial results where this method leads to a significant reduction in the patient's itch Numerical Rating Scale (NRS) score from baseline '096 Patent, col. 2:7-21
- Technical Importance:** The claimed method provides a targeted approach to rapidly alleviate itch, a primary and burdensome symptom of atopic dermatitis, addressing a previously unmet need in the management of the disease.

Key Claims at a Glance

The complaint alleges infringement of one or more claims without specifying them Compl. ¶48
Independent claim 1 is representative of the method of treatment claims.

- Independent Claim 1:** A method of treating moderate atopic dermatitis in a human patient, comprising:
 - administering to the skin a topical formulation comprising from 0.5%-1.5% ruxolitinib, two times per day;
 - continuing administration for at least 8 weeks;
 - wherein the patient has a Body Surface Area (BSA) of AD involvement from 3% to 20% at baseline;
 - wherein the patient has an itch NRS score of ≥ 4 at baseline;
 - wherein the patient achieves Investigator's Global Assessment (IGA) treatment success with a score of 0 or 1 and ≥ 2 grade improvement from baseline at week 8; and
 - wherein the patient achieves at least a 4 point reduction in itch NRS score from baseline at week 8.

III. The Accused Instrumentality

Product Identification

- The accused instrumentality is the "Proposed Generic Opzelura® Product," which is the subject of Sun's ANDA No. 219040 Compl. ¶17

Functionality and Market Context

□The complaint alleges this is a generic version of Incyte's Opzelura® (ruxolitinib) cream, intended for the same uses, which include the treatment of atopic dermatitis and nonsegmental vitiligo **Compl. ¶1** **Compl. ¶¶11-12** The filing of the ANDA itself, seeking FDA approval to market this product before the expiration of the patents-in-suit, constitutes the alleged act of infringement under 35 U.S.C. § 271(e)(2) **Compl. ¶39** **Compl. ¶48** No probative visual evidence provided in complaint.

IV. Analysis of Infringement Allegations

The complaint does not provide specific technical details of the accused product's formulation or proposed label beyond alleging that it is a generic version of Opzelura®. The analysis is therefore based on the premise that the ANDA product will possess the characteristics of the branded drug.

'593 Patent Infringement Allegations

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
A pharmaceutical formulation for topical skin application, wherein the formulation is an oil-in-water emulsion...	The complaint alleges on information and belief that the Proposed Generic Opzelura® Product is an oil-in-water cream formulation containing ruxolitinib for topical application.	¶39	col. 7:1-4
from 35% to 65% by weight of the formulation of water	The complaint does not provide sufficient detail for analysis of this element.	¶39	col. 7:5-6
from 10% to 40% by weight of the formulation of a mixture of petrolatum, C16-18 fatty alcohols, mineral oil, a triglyceride, and a silicone oil	The complaint does not provide sufficient detail for analysis of this element.	¶39	col. 7:7-11
from 2% to 6% by weight of the formulation of a mixture of a glyceryl fatty ester and a sorbitan fatty ester	The complaint does not provide sufficient detail for analysis of this element.	¶39	col. 7:12-14
from 0.5%-1.5% of (R)-3-cyclopentyl-3-[4-(7H-pyrrolo[2,3-d]	The complaint alleges that the Proposed Generic Product contains	¶1; ¶39	col. 7:22-

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
pyrimidin-4-yl)-1H-pyrazol-1-yl] propanenitrile phosphoric acid salt by weight of the formulation on a free base basis.	ruxolitinib, and on information and belief, will fall within the claimed concentration range.		29

Identified Points of Contention:

- Scope Questions:** A central question will be whether the precise formulation detailed in Sun's confidential ANDA falls within the specific percentage ranges for each category of excipients (e.g., water, oil mixture, emulsifier mixture) as recited in the claims.
- Technical Questions:** The infringement analysis will depend on the chemical and physical properties of the excipients used in Sun's proposed product and whether they meet the functional and structural definitions of the components recited in the claims, such as "polysaccharide" or "alkylene glycol".

'096 Patent Infringement Allegations

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
A method of treating moderate atopic dermatitis in a human patient in need thereof comprising: administering to the human patient's skin a topical formulation...two times per day...	The complaint alleges that Sun's ANDA seeks approval for a generic product whose proposed label will instruct and encourage physicians and patients to administer the product for the treatment of atopic dermatitis.	¶11; ¶13; ¶51	col. 29:2-6
continuing the administration of the topical formulation for at least 8 weeks...	On information and belief, the proposed label for the generic product will instruct or suggest a duration of treatment that meets this limitation.	¶11; ¶13; ¶51	col. 29:7-8
wherein the patient achieves IGA treatment success...at week 8 of the administration...	The proposed product is alleged to be a bioequivalent generic, and its label will thus contain efficacy data demonstrating that administration according to the label results in this clinical outcome.	¶1; ¶51	col. 29:14-18
wherein the human patient achieves	The proposed product is alleged to be a	¶1; ¶51	col.

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
at least a 4 point reduction in itch Numerical rating Scale score from baseline at week 8 of the administration.	bioequivalent generic, and its label will thus contain efficacy data demonstrating that administration according to the label results in this clinical outcome.		29:19-22

Identified Points of Contention:

Scope Questions: A principal dispute may involve the "picket fence" limitations, which define the method by its clinical outcomes (e.g., "achieves IGA treatment success...at week 8"). This raises the legal question of whether such statements of a result, rather than an action taken by a user, can serve as enforceable limitations of a method claim.

Technical Questions: An evidentiary question may arise as to whether Sun's proposed label will contain instructions and efficacy data that directly correspond to each of the specific patient population and outcome parameters required by the asserted claims, thereby inducing infringement by healthcare providers.

V. Key Claim Terms for Construction

The Term: "oil-in-water emulsion" (from '593 Patent)

Context and Importance: This term defines the fundamental nature of the claimed formulation. The infringement analysis for the '593 patent hinges on whether Sun's ANDA product is properly classified as an "oil-in-water emulsion" as that term is understood in the context of the patent.

Intrinsic Evidence for Interpretation:

Evidence for a Broader Interpretation: The specification does not provide an explicit definition, which may support giving the term its plain and ordinary meaning as understood by a person of ordinary skill in the pharmaceutical arts.

Evidence for a Narrower Interpretation: The patent provides a detailed manufacturing process '593 Patent, Fig. 1 and specific exemplary formulations '593 Patent, Tables 2-5 A party could argue these examples implicitly define the claimed "oil-in-water emulsion" as one made by a specific process or having a composition closely tied to the disclosed embodiments.

The Term: "achieves at least a 4 point reduction in itch Numerical rating Scale score from baseline at week 8" (from '096 Patent)

Context and Importance: Practitioners may focus on this term because it is a "result-oriented" or "picket fence" limitation. Its construction is critical because it raises the legal question of whether a method claim can be validly limited by a clinical outcome, which is not an action performed by the direct infringer (e.g., a doctor or patient).

Intrinsic Evidence for Interpretation:

Evidence for a Broader Interpretation: A party may argue this language simply describes the inherent result of practicing the method steps (administering the drug for 8 weeks) and

helps define the specific, patented method that produces this beneficial outcome, distinguishing it from prior art methods.

Evidence for a Narrower Interpretation: A party may argue that this is not a valid method step but rather a statement of intended result or patient response, which cannot serve as a basis for infringement because the user of the method does not "perform" the step of "achieving" a specific clinical score.

VI. Other Allegations

Indirect Infringement: The complaint alleges both induced and contributory infringement for both patents-in-suit **Compl. ¶¶42-43** **Compl. ¶¶51-52** The inducement allegation is based on the assertion that Sun's proposed product label will instruct and encourage physicians and patients to perform the infringing methods **Compl. ¶51** Contributory infringement is alleged on the basis that the proposed generic product is especially adapted for an infringing use and has no substantial non-infringing use **Compl. ¶52**

Willful Infringement: The complaint does not use the word "willful" but alleges that Sun had knowledge of the patents via Paragraph IV notice letters sent "No earlier than April 29, 2026" for the '593 patent and "No earlier than June 23, 2026" for the '096 patent **Compl. ¶35** **Compl. ¶37** The complaint also states that the case is "exceptional" and seeks attorneys' fees under 35 U.S.C. § 285, which is often associated with findings of willfulness or other litigation misconduct **Compl. ¶46** **Compl. ¶55**

VII. Analyst's Conclusion: Key Questions for the Case

□ A core issue will be one of **compositional scope:** Does the specific formulation disclosed in Sun's confidential ANDA fall within the quantitative ranges for each component recited in the composition claims of the '593 patent, or will there be a material difference in one or more excipients or their concentrations?

□ A second central issue will be one of **claim enforceability:** Can the method claims of the '096 patent, which are defined by specific clinical trial outcomes (e.g., achieving a certain IGA or itch reduction score at week 8), be validly enforced against an ANDA filer, or will these "picket fence" limitations be found to be improper statements of intended result rather than actionable method steps?

□ A key evidentiary question will be one of **inducement:** Assuming the method claims of the '096 patent are valid, will the language in Sun's proposed product label be found to specifically instruct or encourage medical professionals to prescribe the drug in a manner that directly performs all the steps of the claimed method, including adhering to the specified patient population criteria?

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Attorneys for Plaintiffs

Incyte Corporation and

Incyte Holdings Corporation

UNITED STATES DISTRICT COURT

DISTRICT OF NEW JERSEY

INCYTE CORP. and INCYTE

HOLDINGS CORP.,

Plaintiffs,

v.

SUN PHARMA CANADA INC. and SUN

PHARMACEUTICAL INDUSTRIES LTD.,

Defendant.

Plaintiffs Incyte Corporation and Incyte Holdings Corporation (together, “Incyte”), by their undersigned attorneys, for their First Amended Complaint against Defendants Sun Pharma Canada Inc. (“Sun Canada”) and Sun Pharmaceutical Industries Ltd. (“Sun India”) (collectively, “Sun”) allege as follows:

Nature of the Action

1.

This is an action for patent infringement under the patent laws of the United States, 35 U.S.C. § 100, et seq., arising from Sun’s submission of Abbreviated New Drug Application (“ANDA”) No. 219040 (“Sun’s ANDA”) to the United States Food and Drug Administration (“FDA”) seeking approval to manufacture, use, import, distribute, offer to sell, and/or sell a generic version of Incyte’s Opzelura® (ruxolitinib) drug product prior to the expiration of United States Patent

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Civil Action No. 26-6905 (MCA)(SDA)

FIRST AMENDED COMPLAINT FOR
PATENT INFRINGEMENT

(Filed Electronically)

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No. 12,564,593 (the “’593 patent”) and U.S. Patent No. 12,589,096 (the “’096 patent”) (collectively, the “patents-in-suit”). The patents-in-suit are owned by Incyte Corporation and/or Incyte Holdings Corporation.

The Parties

2.

Plaintiff Incyte Corporation is a corporation organized and existing under the laws of the State of Delaware, having a place of business at 1801 Augustine Cut-Off, Wilmington, DE 19803.

3.

Plaintiff Incyte Holdings Corporation is a corporation organized and existing under the laws of the State of Delaware, having a place of business at 1801 Augustine Cut-Off, Wilmington, DE 19803.

4.

On information and belief, Defendant Sun Pharma Canada Inc. is a corporation organized and existing under the laws of Canada, having a place of business at 130 East Drive, Brampton Ontario, L6T 1C1, Canada.

5.

On information and belief, Defendant Sun Pharmaceutical Industries, Ltd. is a corporation organized and existing under the laws of India, having a place of business at Sun House,

CTS No. 201 B/1, Western Express Highway, Goregaon (East), Mumbai, Maharashtra, 400063, India.

The Patents-in-Suit

6.

On March 3, 2026, the USPTO duly and lawfully issued the ’593 patent, entitled, “Topical Formulation for a JAK Inhibitor.” A copy of the ’593 patent is attached hereto as Exhibit A.

7.

On March 31, 2026, the USPTO duly and lawfully issued the '096 patent, entitled, "Ruxolitinib formulation for reduction of itch in atopic dermatitis." A copy of the '096 patent is attached hereto as Exhibit B.

The Opzelura® Drug Product

8.

Incyte Corporation holds an approved New Drug Application ("NDA") under

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Section 505(a) of the Federal Food Drug and Cosmetic Act ("FFDCA"), 21 U.S.C. § 355(a) for Opzelura® (ruxolitinib) cream (NDA No. 215309).

9.

The claims of the patents-in-suit cover, inter alia, pharmaceutical compositions comprising ruxolitinib and methods of using and administering pharmaceutical compositions comprising ruxolitinib.

10.

Pursuant to 21 U.S.C. § 355(b)(1) and attendant FDA regulations, the patents-in-suit are listed in the FDA publication, "Approved Drug Products with Therapeutic Equivalence Evaluations" (the "Orange Book"), with respect to Opzelura®.

11.

The FDA-approved prescribing information for Opzelura® instructs and encourages physicians, pharmacists, other healthcare workers, and patients to administer Opzelura® for, inter alia, the topical short-term and non-continuous chronic treatment of mild to moderate atopic dermatitis in non-immunocompromised adult and pediatric patients 2 years of age and older whose disease is not adequately controlled with topical prescription therapies or when those therapies are not advisable.

12.

The FDA-approved prescribing information for Opzelura® instructs and encourages physicians, pharmacists, other healthcare workers, and patients to administer Opzelura® for, inter alia, the topical treatment of nonsegmental vitiligo in adult and pediatric patients 12 years of age and older.

13.

The FDA-approved prescribing information for Opzelura® instructs and encourages physicians, pharmacists, other healthcare workers, and patients to administer Opzelura® according to

one or more of the methods claimed in the patents-in-suit.

Jurisdiction and Venue

14.

This Court has jurisdiction over the subject matter of this action pursuant to 28

U.S.C. §§ 1331, 1338(a), 2201, and 2202.

15.

On information and belief, Sun is in the business of, among other things,

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manufacturing, marketing, importing, offering for sale, and selling pharmaceutical products, including generic drug products, throughout the United States, including in this Judicial District.

16.

This Court has personal jurisdiction over Sun pursuant to Federal Rule of Civil

Procedure 4(k)(2), including because: (a) Incyte's claims arise under federal law; (b) Sun is a foreign

defendant not subject to general personal jurisdiction in the courts of any state; and (c) Sun has sufficient contacts with the United States as a whole, including, without limitation, preparing and submitting ANDAs to the FDA and/or manufacturing, importing, offering to sell, and/or selling pharmaceutical products that are distributed throughout the United States, such that this Court's exercise of jurisdiction over Sun satisfies due process.

17.

On information and belief, Taro Pharmaceuticals Inc. ("Taro") submitted ANDA

No. 219040 seeking FDA approval to engage in the manufacture, use, importation, distribution, offer

to sell, and/or sale of the generic drug product that is the subject of ANDA No. 219040 (the "Proposed

Generic Opzelura® Product"), throughout the United States, including in New Jersey and in this Judicial District, prior to the expiration of the patents-in-suit.

18.

On information and belief, Taro and Sun Canada have been amalgamated to continue as one corporation named Sun Canada as of April 1, 2025, and as a result of the amalgamation Taro has transferred all its rights and obligations to Sun Canada.

19.

On information and belief, this Judicial District is a likely destination for the Proposed Generic Opzelura® Product.

20.

On information and belief, Sun intends to benefit directly if its ANDA is approved by participating in the manufacture, importation, distribution, and/or sale of the Proposed Generic Opzelura® Product.

21.

Sun has purposefully availed itself of the rights, benefits, and privileges of New

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Jersey, including by asserting counterclaims in this Court. See, e.g., TherapeuticsMD, Inc., et al. v. Sun Pharmaceutical Industries Limited, et al., No. 24-07974 (D.N.J.); American Regent, Inc. f/k/a Luitpold Pharmaceuticals, Inc. v. Sun Pharmaceutical Industries Limited, et al., No. 24-07810 (D.N.J.); Astellas Pharma Inc. v. Sun Pharmaceutical Industries, Inc., et al., 22-07357 (D.N.J.); Orexo AB, et al. v. Sun Pharmaceutical Industries Limited, et al., 21-17941 (D.N.J.); Allergan Pharmaceuticals International Ltd., et al. v. Sun Pharmaceutical Industries Limited, et al., 20-10176 (D.N.J.); Merck Sharp & Dohme BV, et al. v. Sun Pharmaceutical Industries, Inc., et al., 20-03007 (D.N.J.).

22.

For at least the foregoing reasons, venue is proper in this Judicial District for Sun India pursuant to 28 U.S.C. §§ 1391 and/or 1400(b), including, for example, because Sun is a company

organized and existing under the laws of India and may be sued in any judicial district.

23.

For at least the foregoing reasons, venue is proper in this Judicial District for Sun Canada pursuant to 28 U.S.C. §§ 1391 and/or 1400(b), including, for example, because Sun is a company organized and existing under the laws of Canada and may be sued in any judicial district.

Acts Giving Rise to this Suit

24.

Pursuant to Section 505 of the FDCA, Taro submitted ANDA No. 219040 seeking approval to engage in the commercial manufacture, use, sale, offer for sale, and/or importation into the United States of the Proposed Generic Opzelura® Product before the patents-in-suit expire.

25.

On information and belief, following FDA approval of ANDA No. 219040, Sun will make, use, sell, or offer to sell the Proposed Generic Opzelura® Product throughout the United States,

and/or import such generic product into the United States.

26.

On information and belief, in connection with the submission of ANDA No. 219040 as described above, Taro provided a written certification to the FDA pursuant to Section 505 of the

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FDCA, 21 U.S.C. § 355(j)(2)(A)(vii)(IV) (the “First Paragraph IV Certification”), alleging that the claims of U.S. Patent Nos. 10,758,543 (“the ’543 patent”); 10,869,870 (“the ’870 patent”); 11,219,624

(“the ’624 patent”); 11,571,425 (“the ’425 patent”); 11,590,136 (“the ’136 patent”); 11,510,923 (“the

’923 patent”); and 11,590,137 (“the ’137 patent”) are invalid and/or will not be infringed by the activities described in ANDA No. 219040.

27.

No earlier than January 27, 2025, Taro sent to Incyte a written notice of the First Paragraph IV Certification (the “First Notice Letter”). The First Notice Letter alleged that the claims

of the ’543 patent, the ’870 patent, the ’624 patent, the ’425 patent, the ’136 patent, the ’923 patent, and the ’137 patents are invalid and/or will not be infringed by the activities described in ANDA No.

219040. The First Notice Letter conveyed that Taro seeks approval to market the Proposed Generic Opzelura® Product before the ’543 patent, the ’870 patent, the ’624 patent, the ’425 patent, the ’136 patent, the ’923 patent, and the ’137 patent expire.

28.

After receiving the First Notice Letter, Incyte filed a first Hatch-Waxman patent

infringement suit against Taro in this Court on March 13, 2025, alleging infringement of the '543 patent, the '870 patent, the '624 patent, the '425 patent, the '136 patent, the '923 patent, and the '137

patent. That suit is pending before this Court as Incyte Corp., et al. v. Sun Pharma Canada Inc., et al., No. 25-1858 (MCA)(SDA) (D.N.J.).

29.

On information and belief, in connection with the submission of ANDA No. 219040 as described above, Taro provided a second written certification to the FDA pursuant to Section 505 of the FFDCA, 21 U.S.C. § 355(j)(2)(A)(vii)(IV) (the "Second Paragraph IV Certification"), alleging

that the claims of U.S. Patent No. 12,226,419 ("the '419 patent") are invalid and/or will not be infringed by the activities described in ANDA No. 219040.

30.

No earlier than April 22, 2025, Taro sent to Incyte a written notice of the Second Paragraph IV Certification (the "Second Notice Letter"). The Second Notice Letter alleged that the

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claims of the '419 patent are invalid and/or will not be infringed by the activities described in ANDA

No. 219040. The Second Notice Letter conveyed that Taro seeks approval to market the Proposed Generic Opzelura® Product before the '419 patent expires.

31.

After receiving the Second Notice Letter, Incyte filed a second Hatch-Waxman patent infringement suit against Taro in this Court on June 4, 2025, alleging infringement of the '419 patent. That suit is pending before this Court as Incyte Corp., et al. v. Sun Pharma Canada Inc., No. 25-7243 (MCA)(SDA) (D.N.J.).

32.

On information and belief, effective April 1, 2025, Taro and Sun Canada were amalgamated to continue as one corporation named Sun Pharma Canada Inc. On information and belief, the amalgamation was effected under the provisions of the Business Corporations Act

(Ontario). On information and belief, as a result of the amalgamation, Taro transferred all of its rights

and obligations to the amalgamated corporation. On information and belief, ANDA No. 219040 remained the same and seeks approval for the same product.

33.

On information and belief, following the amalgamation, Sun Canada became the holder of all rights associated with ANDA No. 219040 and assumed all obligations arising from that ANDA, including those relating to the Paragraph IV certifications and notice letters discussed herein.

34.

On information and belief, in connection with the submission of ANDA No. 219040 as described above, Sun Canada provided a written certification to the FDA pursuant to Section 505 of the FFDCA, 21 U.S.C. § 355(j)(2)(A)(vii)(IV) (the “Third Paragraph IV Certification”), alleging that the claims of the ’593 patent are invalid and/or will not be infringed by the activities described in

ANDA No. 219040.

35.

No earlier than April 29, 2026, Sun Canada sent to Incyte a written notice of the Third Paragraph IV Certification (the “Third Notice Letter”). The Third Notice Letter alleged that the claims of the ’593 patent are invalid and/or will not be infringed by the activities described in

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ANDA No. 219040. The Third Notice Letter conveyed that Sun seeks approval to market the Proposed Generic Opzelura® Product before the ’593 patent expires.

36.

On information and belief, in connection with the submission of ANDA No. 219040 as described above, Sun Canada provided a written certification to the FDA pursuant to Section 505 of the FFDCA, 21 U.S.C. § 355(j)(2)(A)(vii)(IV) (the “Fourth Paragraph IV Certification”), alleging

that the claims of the ’096 patent are invalid and/or will not be infringed by the activities described in

ANDA No. 219040.

37.

No earlier than June 23, 2026, Sun Canada sent to Incyte a written notice of the Fourth Paragraph IV Certification (the “Fourth Notice Letter”). The Fourth Notice Letter alleged that the claims of the ’096 patent are invalid and/or will not be infringed by the activities described in ANDA No. 219040. The Fourth Notice Letter conveyed that Sun seeks approval to market the Proposed Generic Opzelura® Product before the ’096 patent expires.

Count I: Infringement of the ’593 Patent

38.

forth herein.

39.

Incyte repeats and realleges the allegations of the preceding paragraphs as if fully set Sun’s submission of ANDA No. 219040, with the accompanying Paragraph IV Certification and notice to Incyte of same, to engage in the commercial manufacture, use, sale, offer for sale, and/or importation into the United States of the Proposed Generic Opzelura® Product, prior to the expiration of the ’593 patent, constitutes infringement of one or more of the claims of that patent under 35 U.S.C. § 271(e)(2)(A).

40.

There is a justiciable controversy between the parties hereto as to the infringement of the ’593 patent.

41.

Unless enjoined by this Court, upon FDA approval of Sun’s ANDA, Sun will

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infringe one or more claims of the ’593 patent under 35 U.S.C. § 271(a) by making, using, offering to

sell, selling, and/or importing the Proposed Generic Opzelura® Product in the United States.

42.

Unless enjoined by this Court, upon FDA approval of Sun’s ANDA, Sun will induce infringement of one or more claims of the ’593 patent under 35 U.S.C. § 271(b) by making, using, offering to sell, selling, and/or importing the Proposed Generic Opzelura® Product in the United States. On information and belief, upon FDA approval of Sun’s ANDA, Sun will intentionally

encourage acts of direct infringement with knowledge of the '593 patent and knowledge that its acts are encouraging infringement.

43.

Unless enjoined by this Court, upon FDA approval of Sun's ANDA, Sun will contributorily infringe one or more claims of the '593 patent under 35 U.S.C. § 271(c) by making, using, offering to sell, selling, and/or importing the Proposed Generic Opzelura® Product in the United

States. On information and belief, Sun has had and continues to have knowledge that the Proposed Generic Opzelura® Product is especially adapted for a use that infringes one or more claims of the '593 patent and that there is no substantial non-infringing use for the Proposed Generic Opzelura® Product.

44.

Incyte will be substantially and irreparably damaged and harmed if Sun's infringement of the '593 patent is not enjoined.

45.

Incyte does not have an adequate remedy at law.

46.

This case is an exceptional one, and Incyte is entitled to an award of its reasonable attorneys' fees under 35 U.S.C. § 285.

Count II: Infringement of the '096 Patent

47.

forth herein.

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Incyte repeats and realleges the allegations of the preceding paragraphs as if fully set

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48.

Sun's submission of ANDA No. 219040, with the accompanying Paragraph IV

Certification and notice to Incyte of same, to engage in the commercial manufacture, use, sale, offer for sale, and/or importation into the United States of the Proposed Generic Opzelura® Product, prior

to the expiration of the '096 patent, constitutes infringement of one or more of the claims of that patent

under 35 U.S.C. § 271(e)(2)(A).

49.

There is a justiciable controversy between the parties hereto as to the infringement of the '096 patent.

50.

Unless enjoined by this Court, upon FDA approval of Sun's ANDA, Sun will infringe one or more claims of the '096 patent under 35 U.S.C. § 271(a) by making, using, offering to sell, selling, and/or importing the Proposed Generic Opzelura® Product in the United States.

51.

Unless enjoined by this Court, upon FDA approval of Sun's ANDA, Sun will induce infringement of one or more claims of the '096 patent under 35 U.S.C. § 271(b) by making, using, offering to sell, selling, and/or importing the Proposed Generic Opzelura® Product in the United States. On information and belief, upon FDA approval of Sun's ANDA, Sun will intentionally encourage acts of direct infringement with knowledge of the '096 patent and knowledge that its acts are encouraging infringement.

52.

Unless enjoined by this Court, upon FDA approval of Sun's ANDA, Sun will contributorily infringe one or more claims of the '096 patent under 35 U.S.C. § 271(c) by making, using, offering to sell, selling, and/or importing the Proposed Generic Opzelura® Product in the United States. On information and belief, Sun has had and continues to have knowledge that the Proposed Generic Opzelura® Product is especially adapted for a use that infringes one or more claims of the '096 patent and that there is no substantial non-infringing use for the Proposed Generic Opzelura® Product.

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53.

Incyte will be substantially and irreparably damaged and harmed if Sun's infringement of the '096 patent is not enjoined.

54.

Incyte does not have an adequate remedy at law.

55.

This case is an exceptional one, and Incyte is entitled to an award of its reasonable attorneys' fees under 35 U.S.C. § 285.

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs Incyte respectfully request the following relief:

(A)

A Judgment that Sun has infringed the patents-in-suit by submitting ANDA No. 219040 with the accompanying Paragraph IV Certifications and notice to Incyte of same;

(B)

A Judgment that Sun has infringed, and that Sun's making, using, selling, offering to sell, and/or importing the Proposed Generic Opzelura® Product will infringe one or more claims of the patents-in-suit;

(C)

An Order that, pursuant to 35 U.S.C. § 271(e)(4)(A), the effective date of FDA approval of ANDA No. 219040 be a date which is not earlier than the later of the expiration of the patents-in-suit, or any later expiration of exclusivity to which Incyte is or becomes entitled;

(D)

Preliminary and permanent injunctions enjoining Sun and its officers, agents, attorneys, and employees, and those acting in privity and/or concert with them, from making, using, offering to sell, selling, and/or importing the Proposed Generic Opzelura® Product until after the expiration of the patents-in-suit, or any later expiration of exclusivity to which Incyte is or becomes entitled;

(E)

A permanent injunction, pursuant to 35 U.S.C. § 271(e)(4)(B), restraining and enjoining Sun, its officers, agents, attorneys, and employees, and those acting in privity and/or concert with them, from practicing any of the subject matter claimed in the patents-in-suit, or from actively

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inducing or contributing to the infringement of any claim of the patents-in-suit, until after the expiration of the patents-in-suit, or any later expiration of exclusivity to which Incyte is or becomes entitled;

(F)

A Judgment that the commercial manufacture, use, offer for sale, sale, and/or importation into the United States of the Proposed Generic Opzelura® Product will directly infringe,
induce infringement of, and/or contribute to infringement of the patents-in-suit;

(G)

To the extent that Sun, its officers, agents, attorneys, and/or employees, or those acting in privity and/or concert with them, has committed any acts with respect to the subject matter claimed in the patents-in-suit, other than those acts expressly exempted by 35 U.S.C. § 271(e)(1), a Judgment awarding Incyte damages for such acts;

(H)

If Sun, its officers, agents, attorneys, and/or employees, or those acting in privity and/or concert with them, engages in the commercial manufacture, use, offer for sale, sale, and/or importation into the United States of the Proposed Generic Opzelura® Product prior to the expiration
of the patents-in-suit, a Judgment awarding damages to Incyte resulting from such infringement, together with interest;

(I)

A Judgment declaring that the patents-in-suit remain valid and enforceable;

(J)

A Judgment that this is an exceptional case pursuant to 35 U.S.C. § 285 and awarding Incyte its attorneys' fees incurred in this action;

(K)

A Judgment awarding Incyte its costs and expenses incurred in this action; and

(L)

Such further and other relief as this Court may deem just and proper.

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Dated: July 16, 2026

By: s/ Charles M. Lizza